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# Freedom of Information Act (FOIA)

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## Freedom of Information Act (FOIA)

The [Freedom of Information Act](#) (FOIA) gives any person the right to request access to records of the executive branch of the U.S. Government. Federal agencies are required to disclose any information requested under the FOIA unless it falls under one of [nine exemptions](#).

### How to Make a FOIA Request

#### Select Record Type: Archival or Operational

The National Archives and Records Administration (NARA) processes Freedom of Information Act (FOIA) requests for two distinct types of records: **archival** and **operational**. There are a few ways to make FOIA requests for archival and operational records — it starts with selecting the right type of record.

#### Archival Records...

are records created by executive branch agencies and the White House that have been transferred into the legal custody of the National Archives.

- FOIA does not apply to records of Congress and the Supreme Court, archival records created by Legislative and Judicial branches, or to records of Presidents before the Reagan Administration. (Post-Reagan records are subject to

#### Operational Records...

are records created by NARA and its employees in the process of carrying out its mission and responsibilities.

- These records include contracts, agency policies, employee directories, and other

#### Electronic Reading Room

Find documents frequently requested under the Freedom of Information Act (FOIA) as well as information routinely available to the public.



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the [Presidential Records Act of 1978](#).)

- Archival records are located at our [archival facilities](#) in the Washington, DC, area and around the country, as well as at our [Presidential Libraries](#).

**Learn how to file your Archival FOIA request**

Learn more about requesting highly sensitive historical records subject to FOIA: [Special Access and FOIA Program](#) ➔

**Submitting FOIA requests via FOIAonline ended September 30, 2022.**

**Submit Operational FOIA requests by sending an email to [FOIA@nara.gov](mailto:FOIA@nara.gov)**

Learn more about requesting operational and archival records: [Freedom of Information Act Reference Guide](#) ➔

## Best Practices for Filing a FOIA Request / Tips

- [OGIS FOIA Resources](#) — Frequently Asked Questions (FAQs)
- [Requester Best Practices](#) — Filing a FOIA Request
- [Tips for Filing FOIA Requests](#)

## FOIA Resources (OGIS)

The [Office of Government Information Services \(OGIS\)](#) is a Freedom of Information Act (FOIA) resource for the public and the government.

Congress has charged OGIS with reviewing FOIA policies, procedures and compliance of federal agencies and identifying ways to improve compliance.

Their mission also includes resolving FOIA disputes between federal agencies and requesters.

## Additional FOIA Resources

- [FOIA contacts & liaisons](#)
- Learn more about [our FOIA Regulations](#) (36 CFR 1250)
- See [Department of Justice FOIA Guidance](#)
- Read the [text of the Freedom of Information Act](#) (5 U.S.C. 552)
- See our [Privacy Act Program Resources](#)
- [NARA FOIA Directives](#)
- Congressional [hearings & testimony](#)
- Archival [fee schedule](#)
- [Other FOIA Resources](#)

## FOIA Reports

- [Archive of FOIA Annual Reports](#) (2013 - Current)
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- [Archive of Quarterly Reports](#) (FY 2013 - Current Fiscal Year)



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